LABOR COMPLIANCE



Employee Data & Privacy is Evolving

We live in a world where companies are intentionally and unintentionally collecting vast amounts of data about employees' activities. *This data encompasses various sources, ranging from obvious ones like badge swipes, GPS, timekeeping, and VPN logs, to more discreet sources like behavior AI, biometrics, facial recognition, and beyond. While these systems serve legitimate business purposes in enhancing security and productivity analysis, it is important to recognize that they can also have unintended consequences and significant risks if not effectively managed.*

Certain statutory requirements apply to specific types of data, such as biometric information governed by Illinois' Biometric Information Privacy Act (BIPA).

However, companies also have additional obligations stemming from the data they collect on their employees. If this data is seen as intrusive surveillance, infringing upon an employee's protected activities as defined by the National Labor Relations Act, it may lead to further obligations. In addition, employees may have the right to request access to their personal information or data under state laws like the California Consumer Privacy Act (CCPA) and the California Privacy Rights Act (CPRA).

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Evaluate Your Obligations

While your data and obligations are unique, the process of evaluating and understanding those obligations follows a standard format. This simple four-phase approach allows companies of all sizes to gain a comprehensive understanding of their data, requirements, employees, and, most importantly, their obligations.



Understanding alone is not enough; meeting obligations and being prepared to provide proof are crucial.

When defining obligations, consider the following elements:



Are you ready?

iDS has a team of experts in compliance, data, and privacy. *We are frequently engaged to help clients better understand their data so that they can mitigate risk and stay focused on business matters rather than legal disputes. Email us today to schedule a no-cost, no-obligation consultation.*

- ☐ Do you know the data you collect and retain?
- ☐ Do you understand what you monitor versus what you store?
- ☐ Are you familiar with the relevant statutory and regulatory requirements governing this data?
- ☐ Can you justify each of these practices with a legitimate business need?
- ☐ Are employees informed, and do you obtain the necessary consent (written if required)?
- ☐ Do you have policies and controls for data access and retention?
- ☐ Are you prepared to respond to inquiries, such as those from the National Labor Relations Board (NLRB) or Data Subject Access Requests (DSARs)?

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